

From a moral standpoint the two seem equally arbitrary. So however we move away from the system of natural liberty, we cannot be satisfied short of the democratic conception. This conception I have yet to explain. And, moreover, none of the preceding remarks are an argument for this conception, since in a contract theory all arguments, strictly speaking, are to be made in terms of what it would be rational to agree to in the original position. But I am concerned here to prepare the way for the favored interpretation of the two principles so that these criteria, especially the second one, will not strike the reader as extreme. Once we try to find a rendering of them which treats everyone equally as a moral person, and which does not weight men's share in the benefits and burdens of social cooperation according to their social fortune or their luck in the natural lottery, the democratic interpretation is the best choice among the four alternatives. With these comments as a preface, I now turn to this conception.

13. DEMOCRATIC EQUALITY AND THE DIFFERENCE PRINCIPLE

The democratic interpretation, as the table suggests, is arrived at by combining the principle of fair equality of opportunity with the difference principle. This principle removes the indeterminateness of the principle of efficiency by singling out a particular position from which the social and economic inequalities of the basic structure are to be judged. Assuming the framework of institutions required by equal liberty and fair equality of opportunity, the higher expectations of those better situated are just if and only if they work as part of a scheme which improves the expectations of the least advantaged members of society. The intuitive idea is that the social order is not to establish and secure the more attractive prospects of those better off unless doing so is to the advantage of those less fortunate. (See the discussion of the difference principle that follows.)

THE DIFFERENCE PRINCIPLE

Assume that indifference curves now represent distributions that are judged equally just. Then the difference principle is a strongly egalitarian conception in the sense that unless there is a distribution that makes both

persons better off (limiting ourselves to the two-person case for simplicity), an equal distribution is to be preferred. The indifference curves take the form depicted in figure 5. These curves are actually made up of vertical and horizontal lines that intersect at right angles at the 45° line (again supposing an interpersonal and cardinal interpretation of the axes). No matter how much either person's situation is improved, there is no gain from the standpoint of the difference principle unless the other gains also.

Suppose that x_1 is the most favored representative man in the basic structure. As his expectations are increased so are the prospects of x_2 , the least advantaged man. In figure 6 let the curve OP represent the contribution to x_2 's expectations made by the greater expectations of x_1 . The point O, the origin, represents the hypothetical state in which all social primary goods are distributed equally. Now the OP curve is always below the 45° line, since x_1 is always better off. Thus the only relevant parts of the indifference curves are those below this line, and for this reason the upper left-hand part of figure 6 is not drawn in. Clearly the difference principle is perfectly satisfied only when the OP curve is just tangent to the highest indifference curve that it touches. In figure 6 this is at the point a.

Note that the contribution curve, the curve OP, rises upward to the right because it is assumed that the social cooperation defined by the basic structure is mutually advantageous. It is no longer a matter of shuffling about a fixed stock of goods. Also, nothing is lost if an accurate interpersonal comparison of benefits is impossible. It suffices that the least favored person can be identified and his rational preference determined.

A view less egalitarian than the difference principle, and perhaps more

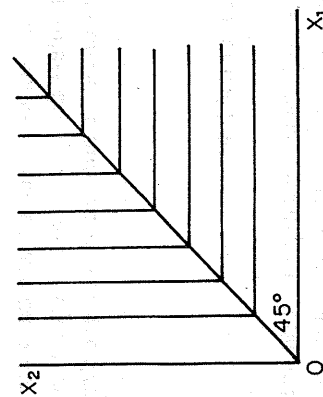


FIGURE 5

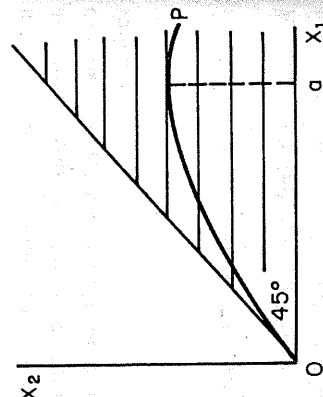


FIGURE 6

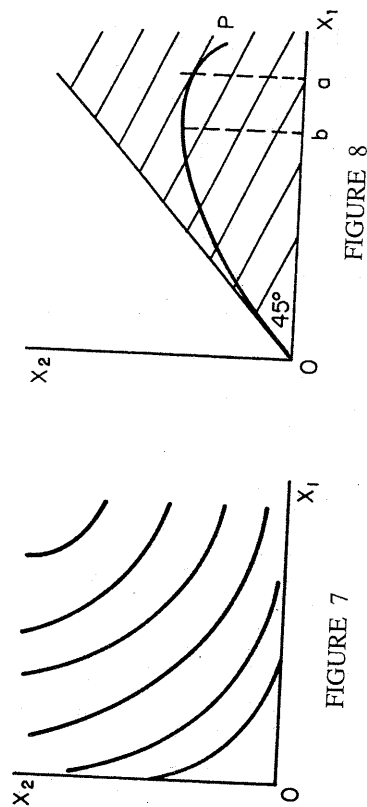


FIGURE 7

FIGURE 8

plausible at first sight, is one in which the indifference lines for just distributions (or for all things considered) are smooth curves convex to the origin, as in figure 7. The indifference curves for social welfare functions are often depicted in this fashion. This shape of the curves expresses the fact that as either person gains relative to the other, further benefits to him become less valuable from a social point of view.

A classical utilitarian, on the other hand, is indifferent as to how a constant sum of benefits is distributed. He appeals to equality only to break ties. If there are but two persons, then assuming an interpersonal cardinal interpretation of the axes, the utilitarian's indifference lines for distributions are straight lines perpendicular to the 45° line. Since, however, x_1 and x_2 are representative men, the gains to them have to be weighted by the number of persons they each represent. Since presumably x_2 represents rather more persons than x_1 , the indifference lines become more horizontal, as seen in figure 8. The ratio of the number of advantaged to the number of disadvantaged defines the slope of these straight lines. Drawing the same contribution curve OP as before, we see that the best distribution from a utilitarian point of view is reached at the point which is beyond the point b where the OP curve reaches its maximum. Since the difference principle selects the point b and b is always to the left of a, utilitarianism allows, other things equal, larger inequalities.

To illustrate the difference principle, consider the distribution of income among social classes. Let us suppose that the various income groups correlate with representative individuals by reference to whose expectations we can judge the distribution. Now those starting out as members of the entrepreneurial class in property-owning democracy, say, have a better prospect than those who begin in the class of unskilled laborers. It

seems likely that this will be true even when the social injustices which now exist are removed. What, then, can possibly justify this kind of initial inequality in life prospects? According to the difference principle, it is justifiable only if the difference in expectation is to the advantage of the representative man who is worse off, in this case the representative unskilled worker. The inequality in expectation is permissible only if lowering it would make the working class even more worse off. Supposedly, given the rider in the second principle concerning open positions, and the principle of liberty generally, the greater expectations allowed to entrepreneurs encourages them to do things which raise the prospects of laboring class. Their better prospects act as incentives so that the economic process is more efficient, innovation proceeds at a faster pace, and so on. I shall not consider how far these things are true. The point is that something of this kind must be argued if these inequalities are to satisfy by the difference principle.

I shall now make a few remarks about this principle. First of all, in applying it, one should distinguish between two cases. The first case is that in which the expectations of the least advantaged are indeed maximized (subject, of course, to the mentioned constraints). No changes in the expectations of those better off can improve the situation of those worst off. The best arrangement obtains, what I shall call a perfectly just scheme. The second case is that in which the expectations of all those better off at least contribute to the welfare of the more unfortunate. That is, if their expectations were decreased, the prospects of the least advantaged would likewise fall. Yet the maximum is not yet achieved. Even higher expectations for the more advantaged would raise the expectations of those in the lowest position. Such a scheme is, I shall say, just throughout, but not the best just arrangement. A scheme is unjust when the higher expectations, one or more of them, are excessive. If these expectations were decreased, the situation of the least favored would be improved. How unjust an arrangement is depends on how excessive the higher expectations are and to what extent they depend upon the violation of the other principles of justice, for example, fair equality of opportunity; but I shall not attempt to measure the degrees of injustice. The point to note here is that while the difference principle is, strictly speaking, a maximizing principle, there is a significant distinction between the cases that fall short of the best arrangement. A society should try to avoid situations where the marginal contributions of those better off are negative, since, other things equal, this seems a greater fault than falling short of the best scheme when these contributions are positive. The even larger difference

between classes violates the principle of mutual advantage as well as democratic equality (§17).

A further point is this. We saw that the system of natural liberty and the liberal conception go beyond the principle of efficiency by setting up certain background institutions and leaving the rest to pure procedural justice. The democratic conception holds that while pure procedural justice may be invoked to some extent at least, the way previous interpretations do this still leaves too much to social and natural contingency. But it should be noted that the difference principle is compatible with the principle of efficiency. For when the former is fully satisfied, it is indeed impossible to make any one representative man better off without making another worse off, namely, the least advantaged representative man whose expectations we are to maximize. Thus justice is defined so that it is consistent with efficiency, at least when the two principles are perfectly fulfilled. Of course, if the basic structure is unjust, these principles will authorize changes that may lower the expectations of some of those better off; and therefore the democratic conception is not consistent with the principle of efficiency if this principle is taken to mean that only changes which improve everyone's prospects are allowed. Justice is prior to efficiency and requires some changes that are not efficient in this sense. Consistency obtains only in the sense that a perfectly just scheme is also efficient.

Next, we may consider a certain complication regarding the meaning of the difference principle. It has been taken for granted that if the principle is satisfied, everyone is benefited. One obvious sense in which this is so is that each man's position is improved with respect to the initial arrangement of equality. But it is clear that nothing depends upon being able to identify this initial arrangement; indeed, how well off men are in this situation plays no essential role in applying the difference principle. We simply maximize the expectations of the least favored position subject to the required constraints. As long as doing this is an improvement for everyone, as so far I have assumed it is, the estimated gains from the situation of hypothetical equality are irrelevant, if not largely impossible to ascertain anyway. There may be, however, a further sense in which everyone is advantaged when the difference principle is satisfied, at least if we make certain assumptions. Let us suppose that inequalities in expectations are chain-connected: that is, if an advantage has the effect of raising the expectations of the lowest position, it raises the expectations of all positions in between. For example, if the greater expectations for entrepreneurs benefit the unskilled worker, they also benefit the semi-

skilled. Notice that chain connection says nothing about the case where the least advantaged do not gain, so that it does not mean that all effects move together. Assume further that expectations are close-knit: that is, it is impossible to raise or lower the expectation of any representative man without raising or lowering the expectation of every other representative man, especially that of the least advantaged. There is no loose-jointedness, so to speak, in the way expectations hang together. Now with these assumptions there is a sense in which everyone benefits when the difference principle is satisfied. For the representative man who is better off in any two-way comparison gains by the advantages offered him, and the man who is worse off gains from the contributions which these inequalities make. Of course, these conditions may not hold. But in this case those who are better off should not have a veto over the benefits available for the least favored. We are still to maximize the expectations of those most disadvantaged. (See the accompanying discussion of chain connection.)

CHAIN CONNECTION

For simplicity assume that there are three representative men. Let x_1 be the most favored and x_3 the least favored with x_2 in between. Let the expectations of x_1 be marked off along the horizontal axis, the expectations of x_2 and x_3 along the vertical axis. The curves showing the contribution of the most favored to the other groups begin at the origin as the hypothetical position of equality. Moreover, there is a maximum gain permitted to the most favored on the assumption that, even if the difference principle would allow it, there would be unjust effects on the political system and the like excluded by the priority of liberty.

The difference principle selects the point where the curve for x_3 reaches its maximum, for example, the point a in figure 9.

Chain connection means that at any point where the x_3 curve is rising to the right, the x_2 curve is also rising, as in the intervals left of the points a and b in figures 9 and 10. Chain connection says nothing about the case where the x_3 curve is falling to the right, as in the interval to the right of the point a in figure 9. The x_2 curve may be either rising or falling (as indicated by the dashed line x'_2). Chain connection does not hold to the right of b in figure 10.

Intervals in which both the x_2 and the x_3 curves are rising define the intervals of positive contributions. Any more to the right increases the

CHAPTER III. THE ORIGINAL POSITION

In this chapter I discuss the favored philosophical interpretation of the initial situation. I refer to this interpretation as the original position. I begin by sketching the nature of the argument for conceptions of justice and explaining how the alternatives are presented so that the parties are to choose from a definite list of traditional conceptions. Then I describe the conditions which characterize the initial situation under several headings: the circumstances of justice, the formal constraints of the concept of right, the veil of ignorance, and the rationality of the contracting parties. In each case I try to indicate why the features adopted for the favored interpretation are reasonable from a philosophical point of view. Next the natural lines of reasoning leading to the two principles of justice and to the principle of average utility are examined prior to a consideration of the relative advantages of these conceptions of justice. I argue that the two principles would be acknowledged and set out some of the main grounds to support this contention. In order to clarify the differences between the various conceptions of justice, the chapter concludes with another look at the classical principle of utility.

20. THE NATURE OF THE ARGUMENT FOR CONCEPTIONS OF JUSTICE

The intuitive idea of justice as fairness is to think of the first principles of justice as themselves the object of an original agreement in a suitably defined initial situation. These principles are those which rational persons concerned to advance their interests would accept in this position of equality to settle the basic terms of their association. It must be shown, then, that the two principles of justice are the solution for the problem of choice presented by the original position. In order to do this, one must establish that, given the circumstances of the parties, and their knowl-

edge, beliefs, and interests, an agreement on these principles is the best way for each person to secure his ends in view of the alternatives available.

Now obviously no one can obtain everything he wants; the mere existence of other persons prevents this. The absolutely best for any man is that everyone else should join with him in furthering his conception of the good whatever it turns out to be. Or failing this, that all others are required to act justly but that he is authorized to exempt himself as he pleases. Since other persons will never agree to such terms of association these forms of egoism would be rejected. The two principles of justice, however, seem to be a reasonable proposal. In fact, I should like to show that these principles are everyone's best reply, so to speak, to the corresponding demands of the others. In this sense, the choice of this conception of justice is the unique solution to the problem set by the original position.

By arguing in this way one follows a procedure familiar in social theory. That is, a simplified situation is described in which rational individuals with certain ends and related to each other in certain ways are to choose among various courses of action in view of their knowledge of the circumstances. What these individuals will do is then derived by strictly deductive reasoning from these assumptions about their beliefs and interests, their situation and the options open to them. Their conduct is, in the phrase of Pareto, the resultant of tastes and obstacles.¹ In the theory of price, for example, the equilibrium of competitive markets is thought of as arising when many individuals each advancing his own interests give way to each other what they can best part with in return for what they most desire. Equilibrium is the result of agreements freely struck between willing traders. For each person it is the best situation that he can reach by free exchange consistent with the right and freedom of others to further their interests in the same way. It is for this reason that this state of affairs is an equilibrium, one that will persist in the absence of further changes in the circumstances. No one has any incentive to alter it. If a departure from this situation sets in motion tendencies which restore it, the equilibrium is stable.

Of course, the fact that a situation is one of equilibrium, even a stable one, does not entail that it is right or just. It only means that given men's estimate of their position, they act effectively to preserve it. Clearly a

1. *Manuel d'économie politique* (Paris, 1909), ch. III, §23. Pareto says: "L'équilibre résulte précisément de cette opposition des goûts et des obstacles."

balance of hatred and hostility may be a stable equilibrium; each may think that any feasible change will be worse. The best that each can do for himself may be a condition of lesser injustice rather than of greater good. The moral assessment of equilibrium situations depends upon the background circumstances which determine them. It is at this point that the conception of the original position embodies features peculiar to moral theory. For while the theory of price, say, tries to account for the movements of the market by assumptions about the actual tendencies at work, the philosophically favored interpretation of the initial situation incorporates conditions which it is thought reasonable to impose on the choice of principles. By contrast with social theory, the aim is to characterize this situation so that the principles that would be chosen, whatever they turn out to be, are acceptable from a moral point of view. The original position is defined in such a way that it is a status quo in which any agreements reached are fair. It is a state of affairs in which the parties are equally represented as moral persons and the outcome is not conditioned by arbitrary contingencies or the relative balance of social forces. Thus justice as fairness is able to use the idea of pure procedural justice from the beginning.

It is clear, then, that the original position is a purely hypothetical situation. Nothing resembling it need ever take place, although we can by deliberately following the constraints it expresses simulate the reflections of the parties. The conception of the original position is not intended to explain human conduct except insofar as it tries to account for our moral judgments and helps to explain our having a sense of justice. Justice as fairness is a theory of our moral sentiments as manifested by our considered judgments in reflective equilibrium. These sentiments presumably affect our thought and action to some degree. So while the conception of the original position is part of the theory of conduct, it does not follow at all that there are actual situations that resemble it. What is necessary is that the principles that would be accepted play the requisite part in our moral reasoning and conduct.

One should note also that the acceptance of these principles is not conjectured as a psychological law or probability. Ideally anyway, I should like to show that their acknowledgment is the only choice consistent with the full description of the original position. The argument aims eventually to be strictly deductive. To be sure, the persons in the original position have a certain psychology, since various assumptions are made about their beliefs and interests. These assumptions appear along with other premises in the description of this initial situation. But clearly arguments

from such premises can be fully deductive, as theories in politics and economics attest. We should strive for a kind of moral geometry with all the rigor which this name connotes. Unhappily the reasoning I shall give will fall far short of this, since it is highly intuitive throughout. Yet it is essential to have in mind the ideal one would like to achieve.

A final remark. There are, as I have said, many possible interpretations of the initial situation. This conception varies depending upon how the contracting parties are conceived, upon what their beliefs and interests are said to be, upon which alternatives are available to them, and so on. In this sense, there are many different contract theories. Justice as fairness is but one of these. But the question of justification is settled, as far as it can be, by showing that there is one interpretation of the initial situation which best expresses the conditions that are widely thought reasonable to impose on the choice of principles yet which, at the same time, leads to a conception that characterizes our considered judgments in reflective equilibrium. This most favored, or standard, interpretation I shall refer to as the original position. We may conjecture that for each traditional conception of justice there exists an interpretation of the initial situation in which its principles are the preferred solution. Thus, for example, there are interpretations that lead to the classical as well as the average principle of utility. These variations of the initial situation will be mentioned as we go along. The procedure of contract theories provides, then, a general analytic method for the comparative study of conceptions of justice. One tries to set out the different conditions embodied in the contractual situation in which their principles would be chosen. In this way one formulates the various underlying assumptions on which these conceptions seem to depend. But if one interpretation is philosophically most favored, and if its principles characterize our considered judgments, we have a procedure for justification as well. We cannot know at first whether such an interpretation exists, but at least we know what to look for.

21. THE PRESENTATION OF ALTERNATIVES

Let us now turn from these remarks on method to the description of the original position. I shall begin with the question of the alternatives open to the persons in this situation. Ideally of course one would like to say that they are to choose among all possible conceptions of justice. One obvious difficulty is how these conceptions are to be characterized so that those in the original position can be presented with them. Yet granting

are not moral conceptions at all, but simply means of suppression. They have no place on a reasonable list of traditional conceptions of justice.¹⁷ Of course, this contention is not at all a matter of definition. It is rather a consequence of the conditions characterizing the original position, especially the conditions of the rationality of the parties and the veil of ignorance. That conceptions of right have a certain content and exclude arbitrary and pointless principles is, therefore, an inference from the theory.

26. THE REASONING LEADING TO THE TWO PRINCIPLES OF JUSTICE

In this and the next two sections I take up the choice between the two principles of justice and the principle of average utility. Determining the rational preference between these two options is perhaps the central problem in developing the conception of justice as fairness as a viable alternative to the utilitarian tradition. I shall begin in this section by presenting some intuitive remarks favoring the two principles. I shall also discuss briefly the qualitative structure of the argument that needs to be made if the case for these principles is to be conclusive.

Now consider the point of view of anyone in the original position. There is no way for him to win special advantages for himself. Nor, on the other hand, are there grounds for his acquiescing in special disadvantages. Since it is not reasonable for him to expect more than an equal share in the division of social primary goods, and since it is not rational for him to agree to less, the sensible thing is to acknowledge as the first step a principle of justice requiring an equal distribution. Indeed, this principle is so obvious given the symmetry of the parties that it would occur to everyone immediately. Thus the parties start with a principle requiring equal basic liberties for all, as well as fair equality of opportunity and equal division of income and wealth.

But even holding firm to the priority of the basic liberties and fair equality of opportunity, there is no reason why this initial acknowledged principle should be final. Society should take into account economic efficiency and the requirements of organization and technology. If there are inequalities in income and wealth, and differences in authority and de-

17. For a similar view, see B. A. O. Williams, "The Idea of Equality," *Philosophy, Politics, and Society*, Second Series, ed. Peter Laslett and W. G. Runciman (Oxford, Basil Blackwell, 1962), p. 113.

grees of responsibility, that work to make everyone better off in comparison with the benchmark of equality, why not permit them? One might think that ideally individuals should want to serve one another. But since the parties are assumed to be mutually disinterested, their acceptance of these economic and institutional inequalities is only the recognition of the relations of opposition in which men stand in the circumstances of justice. They have no grounds for complaining of one another's motives. Thus the parties would object to these differences only if they would be dejected by the bare knowledge or perception that others are better situated; but I suppose that they decide as if they are not moved by envy. Thus the basic structure should allow these inequalities so long as these improve everyone's situation, including that of the least advantaged, provided that they are consistent with equal liberty and fair opportunity. Because the parties start from an equal division of all social primary goods, those who benefit least have, so to speak, a veto. Thus we arrive at the difference principle. Taking equality as the basis of comparison, those who have gained more must do so on terms that are justifiable to those who have gained the least.

By some such reasoning, then, the parties might arrive at the two principles of justice in serial order. I shall not try to justify this ordering here, but the following remarks may convey the intuitive idea. I assume that the parties view themselves as free persons who have fundamental aims and interests in the name of which they think it legitimate for them to make claims on one another concerning the design of the basic structure of society. The religious interest is a familiar historical example; the interest in the integrity of the person is another. In the original position the parties do not know what particular forms these interests take; but they do assume that they have such interests and that the basic liberties necessary for their protection are guaranteed by the first principle. Since they must secure these interests, they rank the first principle prior to the second. The case for the two principles can be strengthened by spelling out in more detail the notion of a free person. Very roughly the parties regard themselves as having a highest-order interest in how all their other interests, including even their fundamental ones, are shaped and regulated by social institutions. They do not think of themselves as inevitably bound to, or as identical with, the pursuit of any particular complex of fundamental interests that they may have at any given time, although they want the right to advance such interests (provided they are admissible). Rather, free persons conceive of themselves as beings who can revise and alter their final ends and who give first priority to preserving their liberty

in these matters. Hence, they not only have final ends that they are in principle free to pursue or to reject, but their original allegiance and continued devotion to these ends are to be formed and affirmed under conditions that are free. Since the two principles secure a social form that maintains these conditions, they would be agreed to rather than the principle of utility. Only by this agreement can the parties be sure that their highest-order interest as free persons is guaranteed.

The priority of liberty means that whenever the basic liberties can be effectively established, a lesser or an unequal liberty cannot be exchanged for an improvement in economic well-being. It is only when social circumstances do not allow the effective establishment of these basic rights that one can concede their limitation; and even then these restrictions can be granted only to the extent that they are necessary to prepare the way for the time when they are no longer justified. The denial of the equal liberties can be defended only when it is essential to change the conditions of civilization so that in due course these liberties can be enjoyed. Thus in adopting the serial order of the two principles, the parties are assuming that the conditions of their society, whatever they are, admit the effective realization of the equal liberties. Or that if they do not, circumstances are nevertheless sufficiently favorable so that the priority of the first principle points out the most urgent changes and identifies the preferred path to the social state in which all the basic liberties can be fully instituted. The complete realization of the two principles in serial order is the long-run tendency of this ordering, at least under reasonably fortunate conditions.

It seems from these remarks that the two principles are at least a plausible conception of justice. The question, though, is how one is to argue for them more systematically. Now there are several things to do. One can work out their consequences for institutions and note their implications for fundamental social policy. In this way they are tested by a comparison with our considered judgments of justice. Part II is devoted to this. But one can also try to find arguments in their favor that are decisive from the standpoint of the original position. In order to see how this might be done, it is useful as a heuristic device to think of the two principles as the maximin solution to the problem of social justice. There is a relation between the two principles and the maximin rule for choice under uncertainty.¹⁸ This is evident from the fact that the two principles

18. An accessible discussion of this and other rules of choice under uncertainty can be found in W. J. Baumol, *Economic Theory and Operations Analysis*, 2nd ed. (Englewood Cliffs, N.J., Prentice-

are those a person would choose for the design of a society in which his enemy is to assign him his place. The maximin rule tells us to rank alternatives by their worst possible outcomes: we are to adopt the alternative the worst outcome of which is superior to the worst outcomes of the others.¹⁹ The persons in the original position do not, of course, assume that their initial place in society is decided by a malevolent opponent. As I note below, they should not reason from false premises. The veil of ignorance does not violate this idea, since an absence of information is not misinformation. But that the two principles of justice would be chosen if the parties were forced to protect themselves against such a contingency explains the sense in which this conception is the maximin solution. And this analogy suggests that if the original position has been described so that it is rational for the parties to adopt the conservative attitude expressed by this rule, a conclusive argument can indeed be constructed for these principles. Clearly the maximin rule is not, in general, a suitable guide for choices under uncertainty. But it holds only in situations marked by certain special features. My aim, then, is to show that a good case can be made for the two principles based on the fact that the original position has these features to a very high degree.

Hall Inc., 1965), ch. 24. Baumol gives a geometric interpretation of these rules, including the diagram used in §13 to illustrate the difference principle. See pp. 558–562. See also R. D. Luce and Howard Raiffa, *Games and Decisions* (New York, John Wiley and Sons, Inc., 1957), ch. XIII, for a fuller account.

19. Consider the gain-and-loss table below. It represents the gains and losses for a situation which is not a game of strategy. There is no one playing against the person making the decision; instead he is faced with several possible circumstances which may or may not obtain. Which circumstances happen to exist does not depend upon what the person choosing decides or whether he announces his moves in advance. The numbers in the table are monetary values (in hundreds of dollars) in comparison with some initial situation. The gain (g) depends upon the individual's decision (d) and the circumstances (c). Thus $g = f(d, c)$. Assuming that there are three possible decisions and three possible circumstances, we might have this gain-and-loss table.

	Decisions	Circumstances		
		c1	c2	c3
d1		-7	8	12
d2		-8	7	14
d3		5	6	8

The maximin rule requires that we make the third decision. For in this case the worst that can happen is that one gains five hundred dollars, which is better than the worst for the other actions. If we adopt one of these we may lose either eight or seven hundred dollars. Thus, the choice of d_3 maximizes $f(d, c)$ for that value of c , which for a given d , minimizes f . The term "maximin" means the *maximum minimorum*; and the rule directs our attention to the worst that can happen under any proposed course of action, and to decide in the light of that.

Now there appear to be three chief features of situations that give plausibility to this unusual rule.²⁰ First, since the rule takes no account of the likelihoods of the possible circumstances, there must be some reason for sharply discounting estimates of these probabilities. Offhand, the most natural rule of choice would seem to be to compute the expectation of monetary gain for each decision and then to adopt the course of action with the highest prospect. (This expectation is defined as follows: let us suppose that g_{ij} represent the numbers in the gain-and-loss table, where i is the row index and j is the column index; and let p_j , $j = 1, 2, 3$, be the likelihoods of the circumstances, with $\sum p_j = 1$. Then the expectation for the i th decision is equal to $\sum p_j g_{ij}$.) Thus it must be, for example, that the situation is one in which a knowledge of likelihoods is impossible, or at best extremely insecure. In this case it is unreasonable not to be skeptical of probabilistic calculations unless there is no other way out, particularly if the decision is a fundamental one that needs to be justified to others.

The second feature that suggests the maximin rule is the following: the person choosing has a conception of the good such that he cares very little, if anything, for what he might gain above the minimum stipend that he can, in fact, be sure of by following the maximin rule. It is not worthwhile for him to take a chance for the sake of a further advantage, especially when it may turn out that he loses much that is important to him. This last provision brings in the third feature, namely, that the rejected alternatives have outcomes that one can hardly accept. The situation involves grave risks. Of course these features work most effectively in combination. The paradigm situation for following the maximin rule is when all three features are realized to the highest degree.

Let us review briefly the nature of the original position with these three special features in mind. To begin with, the veil of ignorance excludes all knowledge of likelihoods. The parties have no basis for determining the probable nature of their society, or their place in it. Thus they have no basis for probability calculations. They must also take into account the fact that their choice of principles should seem reasonable to others, in particular their descendants, whose rights will be deeply affected by it. These considerations are strengthened by the fact that the parties know very little about the possible states of society. Not only are they unable to conjecture the likelihoods of the various possible circumstances, they cannot say much about what the possible circumstances are, much less

enumerate them and foresee the outcome of each alternative available. Those deciding are much more in the dark than illustrations by numerical tables suggest. It is for this reason that I have spoken only of a relation to the maximin rule.

Several kinds of arguments for the two principles of justice illustrate the second feature. Thus, if we can maintain that these principles provide a workable theory of social justice, and that they are compatible with reasonable demands of efficiency, then this conception guarantees a satisfactory minimum. There may be, on reflection, little reason for trying to do better. Thus much of the argument, especially in Part Two, is to show, by their application to some main questions of social justice, that the two principles are a satisfactory conception. These details have a philosophical purpose. Moreover, this line of thought is practically decisive if we can establish the priority of liberty. For this priority implies that the persons in the original position have no desire to try for greater gains at the expense of the basic equal liberties. The minimum assured by the two principles in lexical order is not one that the parties wish to jeopardize for the sake of greater economic and social advantages (§§33–35).

Finally, the third feature holds if we can assume that other conceptions of justice may lead to institutions that the parties would find intolerable. For example, it has sometimes been held that under some conditions the utility principle (in either form) justifies, if not slavery or serfdom, at any rate serious infractions of liberty for the sake of greater social benefits. We need not consider here the truth of this claim. For the moment, this contention is only to illustrate the way in which conceptions of justice may allow for outcomes which the parties may not be able to accept. And having the ready alternative of the two principles of justice which secure a satisfactory minimum, it seems unwise, if not irrational, for them to take a chance that these conditions are not realized.

So much, then, for a brief sketch of the features of situations in which the maximin rule is a useful maxim and of the way in which the arguments for the two principles of justice can be subsumed under them. Thus if the list of traditional views (§21) represents the possible decisions, these principles would be selected by the rule. The original position exhibits these special features to a sufficiently high degree in view of the fundamental character of the choice of a conception of justice. These remarks about the maximin rule are intended only to clarify the structure of the choice problem in the original position. I shall conclude this section by taking up an objection which is likely to be made against the difference principle and which leads into an important question. The

20. Here I borrow from William Fellner, *Probability and Profit* (Homewood, Ill., R. D. Irwin, Inc., 1965), pp. 140–142, where these features are noted.

objection is that since we are to maximize (subject to the usual constraints) the prospects of the least advantaged, it seems that the justice of large increases or decreases in the expectations of the more advantaged may depend upon small changes in the prospects of those worst off. To illustrate: the most extreme disparities in wealth and income are allowed provided that they are necessary to raise the expectations of the least fortunate in the slightest degree. But at the same time similar inequalities favoring the more advantaged are forbidden when those in the worst position lose by the least amount. Yet it seems extraordinary that the justice of increasing the expectations of the better placed by a billion dollars, say, should turn on whether the prospects of the least favored increase or decrease by a penny. This objection is analogous to the following familiar difficulty with the maximin rule. Consider the sequence of gain-and-loss tables:

0	n
1/n	1

for all natural numbers n . Even if for some smallish number it is reasonable to select the second row, surely there is another point later in the sequence when it is irrational not to choose the first row contrary to the rule.

Part of the answer is that the difference principle is not intended to apply to such abstract possibilities. As I have said, the problem of social justice is not that of allocating *ad libitum* various amounts of something, whether it be money, or property, or whatever, among given individuals. Nor is there some substance of which expectations are made that can be shuffled from one representative man to another in all possible combinations. The possibilities which the objection envisages cannot arise in real cases; the feasible set is so restricted that they are excluded.²¹ The reason for this is that the two principles are tied together as one conception of justice which applies to the basic structure of society as a whole. The operation of the principles of equal liberty and fair equality of opportunity prevents these contingencies from occurring. For we raise the expectations of the more advantaged only in ways required to improve the situation of the worst off. For the greater expectations of the more favored presumably cover the costs of training or answer to organizational requirements, thereby contributing to the general advantage. While nothing

21. I am indebted to S. A. Marglin for this point.

guarantees that inequalities will not be significant, there is a persistent tendency for them to be leveled down by the increasing availability of educated talent and ever widening opportunities. The conditions established by the other principles insure that the disparities likely to result will be much less than the differences that men have often tolerated in the past.

We should also observe that the difference principle not only assumes the operation of other principles, but it presupposes as well a certain theory of social institutions. In particular, as I shall discuss in Chapter V, it relies on the idea that in a competitive economy (with or without private ownership) with an open class system excessive inequalities will not be the rule. Given the distribution of natural assets and the laws of motivation, great disparities will not long persist. Now the point to stress here is that there is no objection to resting the choice of first principles upon the general facts of economics and psychology. As we have seen, the parties in the original position are assumed to know the general facts about human society. Since this knowledge enters into the premises of their deliberations, their choice of principles is relative to these facts. What is essential, of course, is that these premises be true and sufficiently general. It is often objected, for example, that utilitarianism may allow for slavery and serfdom, and for other infractions of liberty. Whether these institutions are justified is made to depend upon whether actuarial calculations show that they yield a higher balance of happiness. To this the utilitarian replies that the nature of society is such that these calculations are normally against such denials of liberty.

Contract theory agrees, then, with utilitarianism in holding that the fundamental principles of justice quite properly depend upon the natural facts about men in society. This dependence is made explicit by the description of the original position: the decision of the parties is taken in the light of general knowledge. Moreover, the various elements of the original position presuppose many things about the circumstances of human life. Some philosophers have thought that ethical first principles should be independent of all contingent assumptions, that they should take for granted no truths except those of logic and others that follow from these by an analysis of concepts. Moral conceptions should hold for all possible worlds. Now this view makes moral philosophy the study of the ethics of creation: an examination of the reflections an omnipotent deity might entertain in determining which is the best of all possible worlds. Even the general facts of nature are to be chosen. Certainly we have a natural religious interest in the ethics of creation. But it would

appear to outrun human comprehension. From the point of view of contract theory it amounts to supposing that the persons in the original position know nothing at all about themselves or their world. How, then, can they possibly make a decision? A problem of choice is well defined only if the alternatives are suitably restricted by natural laws and other constraints, and those deciding already have certain inclinations to choose among them. Without a definite structure of this kind the question posed is indeterminate. For this reason we need have no hesitation in making the choice of the principles of justice presuppose a certain theory of social institutions. Indeed, one cannot avoid assumptions about general facts any more than one can do without a conception of the good on the basis of which the parties rank alternatives. If these assumptions are true and suitably general, everything is in order, for without these elements the whole scheme would be pointless and empty.

It is evident from these remarks that both general facts as well as moral conditions are needed even in the argument for the first principles of justice. (Of course, it has always been obvious that secondary moral rules and particular ethical judgments depend upon factual premises as well as normative principles.) In a contract theory, these moral conditions take the form of a description of the initial contractual situation. It is also clear that there is a division of labor between general facts and moral conditions in arriving at conceptions of justice, and this division can be different from one theory to another. As I have noted before, principles differ in the extent to which they incorporate the desired moral ideal. It is characteristic of utilitarianism that it leaves so much to arguments from general facts. The utilitarian tends to meet objections by holding that the laws of society and of human nature rule out the cases offensive to our considered judgments. Justice as fairness, by contrast, embeds the ideals of justice, as ordinarily understood, more directly into its first principles. This conception relies less on general facts in reaching a match with our judgments of justice. It insures this fit over a wider range of possible cases.

There are two reasons that justify this embedding of ideals into first principles. First of all, and most obviously, the utilitarian's standard assumptions that lead to the wanted consequences may be only probably true, or even doubtfully so. Moreover, their full meaning and application may be highly conjectural. And the same may hold for all the requisite general suppositions that support the principle of utility. From the standpoint of the original position it may be unreasonable to rely upon these hypotheses and therefore far more sensible to embody the ideal more expressly in the principles chosen. Thus it seems that the parties would

prefer to secure their liberties straightway rather than have them depend upon what may be uncertain and speculative actuarial calculations. These remarks are further confirmed by the desirability of avoiding complicated theoretical arguments in arriving at a public conception of justice (§24). In comparison with the reasoning for the two principles, the grounds for the utility criterion trespass upon this constraint. But secondly, there is a real advantage in persons' announcing to one another once and for all that even though theoretical computations of utility always happen to favor the equal liberties (assuming that this is indeed the case here), they do not wish that things had been different. Since in justice as fairness moral conceptions are public, the choice of the two principles is, in effect, such an announcement. And the benefits of this collective profession favor these principles even though the utilitarian's assumptions should be true. These matters I shall consider in more detail in connection with publicity and stability (§29). The relevant point here is that while, in general, an ethical theory can certainly invoke natural facts, there may nevertheless be good reasons for embedding convictions of justice more directly into first principles than a theoretically complete grasp of the contingencies of the world may actually require.

27. THE REASONING LEADING TO THE PRINCIPLE OF AVERAGE UTILITY

I now wish to examine the reasoning that favors the principle of average utility. The classical principle is discussed later (§30). One of the merits of contract theory is that it reveals these principles to be markedly distinct conceptions, however much their practical consequences may coincide. Their underlying analytic assumptions are far apart in the sense that they are associated with contrasting interpretations of the initial situation. But first a word about the meaning of utility. It is understood in the traditional sense as the satisfaction of desire; and it admits of interpersonal comparisons that can at least be summed at the margin. I assume also that utility is measured by some procedure that is independent of choices involving risk, say by postulating an ability to rank differences between levels of satisfaction. These are the traditional assumptions; and while they are very strong, they will not be criticized here. As far as possible, I want to examine the historical doctrine on its own terms.

Applied to the basic structure, the classical principle requires that institutions be arranged to maximize the absolute weighted sum of the ex-